

and profits of the coal-mining industry as a whole, and for the various districts, notwithstanding anything in this schedule or that such summaries may be compiled from information obtained under paragraph 2 thereof.

(2) Any person who may obtain any information which by virtue of this section is to be treated as confidential shall be required to make a declaration of secrecy in such form as may be prescribed by the Board of Trade, and, subject as aforesaid, any person who has made such a declaration shall, for the purposes of section eighty-nine of the Income Tax Act, 1918, and the declarations made thereunder, be treated in relation to the disclosure of information under the last preceding paragraph of this Act as if he was a person sworn to the due execution of the said Act.

5. Where an undertaking is subject to the Coal Mines Control Agreement (Confirmation) Act, 1918, during part only of an accounting period, the profits standard or the special standard, as the case may require, and the guaranteed standard, and any other sums brought into account in calculating the sums retainable under clause 3 or payable under clause 4 of the said agreement, shall, for the purposes of applying that agreement to such part of such accounting period, be proportionately reduced, and the profits for that period shall be apportioned between the parts of the period before and after the date of the termination of the said agreement in proportion to the number of months or fractions of months in those parts, respectively.

CHAPTER 5.

An Act to continue temporarily certain emergency enactments and regulations, and to make provision with respect to the expiration or revocation of emergency enactments and instruments made thereunder.

[31st March 1920.]

WHEREAS the enactments mentioned in the first column of the First Schedule to this Act are subject to the limitations mentioned in the second column of that schedule, and it is expedient that they should be extended in the manner hereinafter appearing :

And whereas the Defence of the Realm Regulations will expire at the termination of the present war, and it is expedient that certain of those regulations should continue in force thereafter :

And whereas it is expedient to make provision as to the effect of the expiry of enactments and other instruments which will expire on, or on the expiration of an interval after, the termination of the present war :

Now, therefore, be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The limitations on the continuance or operation of the enactments mentioned in the first column of the First Schedule in this Act shall be modified in the manner and to the extent specified in the third column of that schedule. Continuance of certain emergency Acts.

2.—(1) The Defence of the Realm Regulations mentioned in the first column of the Second Schedule to this Act shall, subject to the limitations, qualifications and modifications specified in the third column of that schedule, continue in force until the thirty-first day of August nineteen hundred and twenty, and as so continued shall have effect as if enacted in this Act : Continuance of certain Defence of the Realm Regulations

Provided that it shall be lawful for His Majesty in Council to revoke in whole or in part any of the regulations so continued as soon as it appears to him that consistently with the national interest any such regulation can be so revoked :

Provided also that no such regulation as so continued shall have greater validity than it had before the time when but for this Act it would have expired.

(2) If after the termination of the present war any person is guilty of an offence under any regulation made under the Defence of the Realm Consolidation Act, 1914, for the time being in force, he shall be liable on conviction under the Summary Jurisdiction Acts to imprisonment with or without hard labour for a term not exceeding three months or to a fine not exceeding one hundred pounds or to both such imprisonment and fine, and the court may in any case order that any goods or money in respect of which the offence has been committed be forfeited : 5 & 6 Geo. 5.
c. 8.

Provided that—

- (a) a prosecution for any such offence shall not in England and Ireland be instituted except by or with the consent of the Attorney-General for England or Ireland, as the case may be, or by an officer of the police, or by a person acting in each case under a special authority from the Government department concerned; and
- (b) in Ireland the court of summary jurisdiction, when hearing and determining an information or complaint in respect of any such offence, shall, in the Dublin metropolitan police district, be constituted of one of the divisional justices of that district, and elsewhere be constituted of a resident magistrate sitting with one or more other resident magistrates, and the court of quarter sessions when hearing and determining an appeal against a conviction of a court of summary jurisdiction for any such offence shall be constituted of the recorder or county court judge sitting alone.

8 & 9 Geo. 5.
c. 9.

(3) The Defence of the Realm (Food Profits) Act, 1918, shall continue in force so long as any order made by the Food Controller under the powers continued by this Act regulating the price of any goods continues in force.

5 & 6 Geo. 5.
c. 34.

(4) If immediately before the passing of this Act a proclamation suspending the operation of section one of the Defence of the Realm (Amendment) Act, 1915, in respect of any area is in force, then, as respects that area, all the Defence of the Realm Regulations then in force shall, subject to the power of His Majesty in Council by order to revoke any of such regulations, continue in force until the expiration of twelve months after the termination of the present war, subject, as respects any regulations modified by the Second Schedule to this Act, to the modifications therein contained, save so far as those modifications limit the operation of the regulations, and those regulations as so continued shall have effect as if enacted in this Act; and in that area offences against the said regulations shall, notwithstanding anything hereinbefore contained, continue to be triable and punishable in like manner as if the Defence of the Realm Consolidation Act, 1914, and the Acts amending that Act continued in force, except that where any such offence is tried by a court of summary jurisdiction or, on appeal, by a court of quarter sessions, the court shall be constituted as hereinbefore provided :

Provided that no such regulation as so continued shall have greater validity than it had before the time when but for this Act it would have expired :

Provided that, if the said proclamation is revoked before the expiration of the said twelve months, this section shall, as from the date of the revocation, apply in respect of the area in question in like manner as it applies in respect of the rest of the United Kingdom.

Effect of
expiration of
emergency
legislation.

3.—(1) Where any Act passed during the continuance of the present war or any order, regulation, or other instrument made thereunder expires at the termination of the present war or on the lapse of any time thereafter such expiry shall not—

- (a) affect the previous operation of any enactment or instrument so expiring or anything duly done or suffered under any enactment or instrument so expiring; or
- (b) affect any right, privilege, exemption, obligation or liability acquired, accrued, or incurred under any enactment or other instrument so expiring; or
- (c) affect any penalty, forfeiture, or punishment incurred under any enactment or instrument so expiring; or
- (d) affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture, or punishment as aforesaid;

and any such investigation, legal proceeding, or remedy may be instituted, continued, or enforced, and any such penalty, forfeiture, or punishment may be imposed as if the enactment or instrument had not expired, with this qualification as respects proceedings for offences under the Defence of the Realm Regulations, that anything required thereunder to be done by, to, or before the competent naval or military authority may be done by, to, or before such officer as the Admiralty or Army Council may appoint for the purpose.

(2) Where any such Act, order, regulation, or other instrument so expiring contains any provision making it an offence to disclose any information obtained in pursuance of the powers conferred by the Act, order, regulation, or instrument, or preserving any right which may be prejudiced by the communication of information required to be furnished thereunder, that provision shall notwithstanding such expiry continue in force.

4.—(1) Where any enactment or regulation continued by this Act has by Order in Council made under the Isle of Man (War Legislation) Act, 1914, been extended to the Isle of Man, the continuance effected by this Act shall apply to the enactment or regulation as so extended.

Application to
Isle of Man.
4 & Geo. 5.
c. 62.

(2) For removing doubts, it is hereby declared that any Order in Council made under the said Act extending any enactment or regulation to the Isle of Man may be revoked by Order in Council.

5. This Act may be cited as the War Emergency Laws (Continuance) Act, 1920.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

Enactment.	Nature and Extent of Limitation.	Nature and Extent of Extension.
Patents, Designs and Trad Marks Temporary Rules) Act, 1914 (4 & 5 Geo. 5, c. 27).	Limited to the continuance of the present state of war in Europe and for a period of six months thereafter.	To continue, so far as it relates to the extension of the time within which acts or things may or are required to be done under the Patents and Designs Act, 1907, or the Trade Marks Act, 1905, until the tenth

Enactment.	Nature and Extent of Limitation.	Nature and Extent of Extension.
		day of January nineteen hundred and twenty-one as if in section three thereof for the words "during" "the continuance of" "the present state of" "war in Europe and" "for a period of six" "months thereafter" there were substituted the words "until the" "tenth day of January nineteen hundred" "and twenty-one."
Special Constables Act, 1914 (4 & 5 Geo. 5. c. 61).	Limited to special constables appointed during the present war.	To extend to special constables appointed during a period of one year after the termination of the present war, as if in section 1 (1) after the words "during the" "present war" there were inserted the words "or a period" "of twelve months" "after the termination" "thereof."
The Courts Emergency Powers Act, 1914 (4 & 5 Geo. 5. c. 78), and the enactments to be read or construed as one with that Act, viz., the Courts Emergency Powers (Amendment) Act, 1916 (6 & 7 Geo. 5. c. 13), as amended by the Courts (Emergency Powers) Act, 1917, s. 8, the Courts Emergency Powers (No. 2) Act, 1916 (6 & 7 Geo. 5. c. 18).	Limited to the continuance of the present war and a period of six months thereafter.	To continue for a period of twelve months after the termination of the present war as if in s. 2 (4) for the words "six months" there were substituted the words "twelve months."
Local Authorities (Disqualification Relief) Act, 1914 (5 Geo. 5. c. 10).	Limited to the duration of the present war.	To continue for a period of twelve months after the termination of the present war as if in

Enactment.	Nature and Extent of Limitation.	Nature and Extent of Extension.
Execution of Trusts (War Facilities) Act, 1914 (5 Geo. 5. c. 13), as amended by the Execution of Trusts (War Facilities) (Amendment) Act, 1915 (5 & 6 Geo. 5. c. 70).	Limited to trustees engaged on war service as defined by the Act.	section 1 after the words "during the present war" there were inserted the words "and a period of twelve months after the termination thereof." To extend to trustees engaged on war service as if at the end of the definition of war service in s. 1 (2) the following paragraph was added :— "(d) if during the period of twelve months after the termination of the present war he is engaged on service abroad as a member of the military, naval, or air forces of the Crown, or engaged on service in any work abroad of the British Red Cross Society or the Order of St. John, or any other body with similar objects."
Special Acts (Extension of Time) Act, 1915 (5 & 6 Geo. 5. c. 72).	Limited to applications made during the continuance of the present war or a period of six months thereafter.	To extend to applications made during twelve months after the termination of the war, as if in s. 2 (3) for the words "six months" there were substituted the words "twelve months."
Evidence (Amendment) Act, 1915 (5 & 6 Geo. 5. c. 94).	S. 1 limited to the continuance of the present war.	S. 1 to continue for a period of twelve months after the termination of the present war, as if after the words "during the continuance of the present war" there were inserted the words "and a period of twelve months after the termination thereof."

Enactment.	Nature and Extent of Limitation.	Nature and Extent of Extension.
Courts (Emergency Powers) (Amendment) Act, 1916 (6 & 7 Geo. 5. c. 13) as amended by the Courts (Emergency Powers) Act, 1917, s. 8.	Limited to have effect in favour of officers and men of His Majesty's forces.	To extend and to be deemed always to have extended so as to have effect in favour of persons who having served as officers or men in any of His Majesty's forces during the present war, have ceased to be members of those forces for a period of six months after the date when they so ceased, but in no case beyond the expiration of twelve months after the termination of the present war.
Summer Time Act, 1916 (6 & 7 Geo. 5. c. 14).	Power of making Orders in Council exercisable only during the continuance of the present war.	Power of making Orders in Council to continue during a period of one year after the termination of the present war, as if in s. 1 (2) after the words "during the continuance of the present war" there were inserted the words "and a period of twelve months after the termination thereof."
Courts (Emergency Powers) Act, 1917 (7 & 8 Geo. 5. c. 25).	S. 3 limited to cases where non-fulfilment of a contract is due to compliance on the part of any person with any requirement, &c. made for the purposes of the present war. S. 9 limited to contracts and agreements entered into during the present war.	To extend to cases where non-fulfilment of a contract is due to compliance on the part of any person with any regulation continued by this Act or with any requirement, order or restriction made, issued, given or imposed thereunder. To extend to contracts and agreements entered into during the period of twelve months after the termination of the present war as if in that section after the words "during the present war" there were inserted the words

Enactment.	Nature and Extent of Limitation.	Nature and Extent of Extension.
Local Government (Allotments and Land Cultivation) (Ireland) Act, 1917 (7 & 8 Geo. 5. c. 30).	Limited to the promotion of cultivation of land during the present war.	“ or a period of twelve months after the termination thereof ” and as if the section extended to property requisitioned or taken under the regulations continued by this Act. To extend to the cultivation of land during twelve months after the termination of the present war, as if in s. 1 (1) after the words “ during the continuance of the present war ” there were inserted the words “ and a period of twelve months after the termination thereof.”

SECOND SCHEDULE.

Section 2.

REGULATIONS CONTINUED.

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
1	Ordinary avocations of life, &c., to be interfered with as little as possible.	
2 AB	Power to take possession of premises for purposes of the Ministry of Pensions or the Ministry of Labour.	So far as relates to the power of taking possession of land, including the buildings thereon, certified to be required for carrying into effect the Naval and Military War Pensions, &c. Act, 1915: Provided that such power shall not be exercised unless after due inquiry the Minister of Labour or the Minister of Pensions (as the case may be) is satisfied

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
2 AB— <i>cont.</i>		that the premises cannot otherwise be reasonably obtained, and has laid a report stating the circumstances of the case and particulars of the proposed exercise of the power before both Houses of Parliament, and if either House within the next twenty-one days on which that House has sat after the report has been laid before it passes a resolution against the exercise of the power proposed, no further action shall be taken thereon, but without prejudice to the making of any new proposal.
2 B	Power to requisition war material, stores, &c.	So far as relates to the powers of the Food Controller, and to flax.
2 BB	Power to vary terms of sub-contracts.	So far as relates to cases where certificates or orders have at the passing of this Act been issued.
2 C	Power to take possession of and fell trees.	So far as relates to timber of which possession has been taken at the passing of this Act.
2 E	Power to regulate dealings in war material, stores, &c.	So far as relates to the powers of the Food Controller, and to flax and clinical thermometers.
2 F to 2 J	Powers of the Food Controller.	
2 JJ	Power to regulate articles of commerce other than food.	So far as relates to coal (including anthracite and all other kinds of coal, coke, briquettes, and any other solid fuel of which coal or coke is a constituent), gas, and electricity.
2 JJJ	Power to regulate the transport of goods by road.	As if in subsection (1) the words "and thereby" "furthering the successful" "prosecution of the war" "or otherwise securing the" "defence of the realm" were omitted.

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
2 O	Keeping of pigs - -	Subsection (5), and, so far as relates to permissions granted and in force at the date of the passing of this Act, the remainder of the regulation.
5 A	Power to take over control and maintenance of highways.	So far as relates to highways which have been damaged by Government use before the passing of this Act, and as if for the words "for the purpose of securing the public safety and the defence of the realm," there were substituted the words "in the national interests."
6 A	Power to exempt factories and workshops from provisions of Act of 1901.	So far as relates to orders authorising, subject to the weekly limit of hours allowed by Act of 1901— (a) employment of women and young persons in shifts (not being night shifts) averaging not more than eight hours; (b) employment of women and young persons at special times in creameries and cheese-making works; (c) night employment of male young persons over 17 years of age in wire-drawing; (d) minor adjustments of times of starting and stopping work and of meal intervals.
7 B	Power to regulate traffic on railways.	Except paragraphs (b) to (j) of subsection (1) and as if the words "with a view to the successful prosecution of the war" were omitted.
8 DD	Power to issue motor drivers' licences to males between 16 and 17.	So far as relates to existing licences issued thereunder.
9 G	Power to control coal mines.	

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
9 GGG	Power to authorise the working of seams of coal in certain circumstances.	So far as relates to any seams with respect to which existing authorities have been issued.
9 H	Power to control canals	So far as relates to canals with respect to which existing orders have been issued, and as if the words "for securing the public safety" and the defence of the "realm" were omitted therefrom.
10 B	Power to restrict hours in the evening during which business may be carried on.	
11 A	Power to restrict lighting with a view to increased supply of light and power for purpose of production.	So far as relates to lights used solely or mainly for the purposes of advertisement, and as if the words "necessary for the successful prosecution of the war" were omitted.
12 D	Power to prohibit whistling and other noises.	
14 H	Restriction on the use of assumed names.	
15 C	Power to require particulars as to businesses.	So far as may be necessary in respect of any contract or requisition entered into or made during the war.
17	Suspension of restrictions on powers of making byelaws.	
18 A	Prohibition on communications with agents of foreign powers.	
21 A	Provisions for the protection of homing pigeons.	Except paragraph (c).
30 A	Restriction on dealings in war material.	
30 E, 30 EE, 30_EEE.	Provisions as to coinage and bullion.	

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
30 F	Restrictions on new capital issues.	Except subsections (1), (2), (3), and (5) and paragraph (b) of subsection (4).
31	Restriction on import and removal of arms, ammunition, and explosives.	
33	Restriction on possession of explosives and highly inflammable liquids.	
34	Provisions as to the storage of petroleum and other highly-inflammable liquids.	
35 A	Power to make rules for securing the safety of factories, &c.	So far as relates to factories in which dangerous operations in connection with the breaking up of ammunition are carried on.
37 B	Duty of providing wireless telegraph apparatus on ships.	
39 BBB	Powers of shipping controller.	
39 C	Regulation of traffic at ports.	As if the words "whereby "the successful prosecution "of the war may be endangered" were omitted therefrom.
39 CC	Restrictions on power to purchase ships.	
39 DD, 39 FF.	Powers of Shipping Controller.	
39 G	Provisions as to registry of British ships.	
40 B	Restriction on the supply, preparation and use of cocaine and opium.	
40 BB	Purchase and distribution of drugs designed for the treatment of venereal disease.	As if the words "during the continuance of the war" were omitted therefrom.
41	Unauthorised use of uniform, badges, &c.	

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
42 A	Provisions against persons inducing members of the forces to contravene the King's Regulations, &c.	
43 A	Obstruction of members of the forces in the execution of their duties.	
44	Forgery, personation, and other fraudulent offences.	
45 F	Provisions for securing discipline of the allied forces in the United Kingdom.	
47, 48, and 48 A.	General provisions as to offences.	So far as relates to offences against regulations continued by this Act.
51	Powers of search - -	As if, as respects Great Britain, for that regulation the following regulation were substituted :— If a justice of the peace, including in Scotland the sheriff, is satisfied on information on oath that there is reasonable ground for suspecting that an offence against these regulations has been or is about to be committed, he may grant a search warrant authorising any constable named in the warrant to enter at any time any premises or place named in the warrant, if necessary by force, and to search the premises or place and to seize anything found therein which is evidence of an offence against these regulations having been or being about to be committed or with regard to or in connection with which he has reasonable ground for suspecting that an offence against these regulations has been or is about to be committed. Where the alleged offence is an offence under Regulation 18A and it appears to a superintendent of police or any person upon whom

Number of Regulation.	Subject Matter.	Limitations, Qualifications, and Modifications subject to which Extension is made.
51— <i>cont.</i>		the powers of a superintendent of police are for the purposes of this regulation conferred by a Secretary of State, or in Scotland by the Secretary for Scotland, that the case is one of great emergency, and that in the interest of the State immediate action is necessary, he may, by a written order under his hand, give to any constable the like authority as may be given by the warrant of a justice under this regulation.
55	Powers of arrest - -	As if, as respects Great Britain, for that regulation, the following regulation was substituted :— Any person who is found committing an offence, or who is reasonably suspected of having committed or being about to commit an offence under Regulation 18A, may be arrested without warrant by a constable or by a person authorised for the purpose by a Secretary of State, or in Scotland by the Secretary for Scotland.
55 B	Power to provide for co-operation of fire brigades.	Except so far as relates to air raids.
59	Saving of powers.	
60	Publication of orders, &c.	
61	Production of permits.	
62	Definitions - - -	As if for the words “ acting in “ naval or military co-operation ” there were substituted the words “ which “ have acted in naval or “ military co-operation.”
63	Citation and construction.	
66	Effect of revocation.	

Note.—For the purposes of this Schedule, “ existing ” means existing and in force at the date of the passing of this Act.